

Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 May 2012 · Writ-C No. 26497 of 2012 · **Writ dismissed; petitioner relegated to clause 6.5 and CGRF.**

HEADNOTE

A consumer disputing a recovery citation and electricity bills, including post-disconnection minimum-guarantee charges, must first approach the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, and thereafter the Consumer Grievance Redressal Forum. A writ seeking to correct bills in the High Court without exhausting those statutory remedies under the Electricity Act, 2003 is dismissed.

FACTUAL SUMMARY

Pratap Singh ran a flour mill on an LMV-6 connection of 33 kVA, raised to 40 kVA on 4 December 2009. Supply was disconnected in November 2011 and the meter dismantled. A 26 February 2012 bill of Rs.4,24,985 (arrears and late-payment surcharge) was followed by a 19 March 2012 recovery citation for Rs.2,08,113 and other dues, including minimum-guarantee charges. He sought a writ quashing the citation and correcting the bills, alleging no post-disconnection consumption. He had made no representation to the department.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

exhaustion of clause 6.5 before writ

HOLDING

A consumer who disputes electricity bills, a recovery citation, and post-disconnection minimum-guarantee charges must first raise the grievance before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005, and may thereafter approach the Consumer Grievance Redressal Forum. A writ petition filed in the High Court to correct such bills without first exhausting those statutory remedies under the Electricity Act, 2003 is not maintainable and is dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POST-DISCONNECTION DEMAND, INCLUDING MINIMUM-GUARANTTEE CHARGES AFTER THE METER WAS DISMANTLED, WAS JUSTIFIED

Writ dismissed for non-exhaustion of clause 6.5 and CGRF remedies; merits of the bill and citation were not examined. ¶ 1